ORDINANCE NO. ~~2025-~~ 590

AN ORDINANCE TO VACATE A PORTION OF SOUTH CAGLE STREET IN THE CITY OF RECTOR, ARKANSAS; AND FOR OTHER PURPOSES

WHEREAS, the Rector City Council has received a petition from the Rector School District, the sole abutting property owner, requesting the vacation of a portion of South Cagle Street between West 3rd Street and West 5th Street within the corporate limits of the City of Rector, Arkansas;

WHEREAS, the Rector School District owns all real property abutting the subject portion of South Cagle Street;

WHEREAS, the City Council finds that the segment of South Cagle Street described herein no longer serves a public purpose, and that its closure will promote public safety, secure campus access, and is an efficient use of school property;

WHEREAS, the City has provided notice and held a public hearing in compliance with Ark. Code Ann. §§ 14-301-301 through 14-301-305;

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS:

SECTION 1. VACATION OF STREET. The following portion of public street located within the corporate limits of the City of Rector is hereby vacated:

> **That portion of South Cagle Street beginning at the intersection of West 3rd Street and extending south to the intersection of West 5th Street, a distance of approximately 275 feet, as more specifically depicted in Exhibit A attached hereto for illustrative purposes.**

This street segment is bounded on the east and west by the following Rector School District parcels:

Parcel No. 751-03724-000E (604 W. 5th Street)
Parcel No. 751-02890-000E (Woodland Heights)
Parcel No. 751-02889-000E(803 W. 3rd Street)
Parcel No. 751-02896-000E (721 W. 3rd Street)

SECTION 2. TITLE TO REVERT. Title to the vacated portion shall vest in the Rector School District as the sole abutting owner. (see A.C.A. § 14-301-306).

SECTION 3. EASEMENT RESERVATION. The City of Rector hereby reserves a perpetual easement across the vacated street for the benefit of any public utility company

currently maintaining facilities within the right-of-way, unless such utility provider consents in writing to the release of its easement rights.

SECTION 4. RECORDING. A copy of the ordinance, together with Exhibit A, shall be certified by the City Recorder and filed in the Office of the Circuit Clerk and Ex-Officio Recorder of the county and recorder in the deed records for the Eastern District of Clay County, Arkansas.

SECTION 5. EMERGENCY CLAUSE. The City Council finds that continued public use of this street segment poses safety concerns for the school community and interferes with the District's campus development. Therefore, an emergency is declared to exist, and this ordinance shall take effect immediately upon its passage and publication.

PASSED AND APPROVED this 14th day of AUGUST, 2025.

Shawn Brandon, Mayor
City of Rector, Arkansas

ATTEST:

City Clerk

CERTIFICATION

I, Debi Boyd, City Recorder of the City of Rector, Arkansas, certify that the attached document marked Ordinance No. ~~2025-~~ 590 and attached Exhibit A are a true and correct copy of the ordinance duly adopted by the Rector City Council at a regular meeting held on the 14th day of AUGUST, 2025.

IN WITNESS WHEREOF, I have set my hand and affixed the official seal of the City of Rector on this 14th day of AUGUST, 2025.

Debi Boyd
City Recorder

Exhibit A – Street Segment to be Vacated

That portion of South Cagle Street located within the incorporated limits of the City of Rector, Arkansas, beginning at the intersection of W. 3rd Street and extending south to the intersection of W. 5th Street, a distance of approximately 275 feet, as shown on the official street map of the City of Rector.

This segment is bounded on the east and west by multiple parcels currently owned by the Rector School District for purposes of campus expansion and development.

